

Telangana Prohibition of Ragging Act, 1997

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State of Telangana - Act

Telangana Prohibition of Ragging Act, 1997

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Telangana Prohibition of Ragging Act, 1997

Act 26 of 1997

Published on 4 July 1997

Commenced on 4 July 1997

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[Note: The original publication document is not available and this content could not be verified.]

Telangana Prohibition of Ragging Act, 1997

(Act

No.26 of 1997

)

1.

Short title and commencement.

(1)

This Act may be called the [Telangana Prohibition of Ragging Act, 1997]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

.

(2)

It extends to the whole of the State of [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

;

(3)

It shall be deemed to have come into force with effect from the 4th July, 1997.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"act" includes words either spoken or written or signs or sounds or gestures or visible representations;

(b)

"Educational Institution" means and includes a college, or other institution by whatever name called, carrying on the activity or imparting education therein (either exclusively or among other activities); and includes an orphanage or boarding home or hostel or a tutorial institution or any other premises attached thereto;

(c)

"Government" means the State Government of [Telangana]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

;

(d)

"notification" means the notification published in the [Telangana Gazette and the word 'notified' shall be construed accordingly;]

[Substituted by G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.]

(e)

"ragging" means doing an act which causes or likely to cause insult or annoyance of fear or apprehension or threat or intimidation or outrage of modesty or injury to a student;

(f)

"student" means a person who is admitted to an educational institution and whose name is lawfully borne on the attendance register thereof;

(g)

All words and expressions used but not defined in this Act shall have the meanings assigned to them under the [Telangana Education Act, 1982 (Act

1 of 1982

). or the Indian Penal Code, 1860 (Central Act 45 of 1860). respectively.]

[Adapted by G.O.Ms.No.15, Higher Education (TE) Department, dated 23.04.2015.]

3.

Prohibition of Ragging.

- Ragging within or outside any educational institution is prohibited.

4.

Penalty for Ragging.

- Whoever, with the intention of causing ragging or with the knowledge that he is likely by such act to cause ragging, commits or abets ragging and thereby,-

(i)

teases or embarrasses or humiliates a student shall be punished with imprisonment for a term which may extend to six months or with fine which may extend to one thousand rupees, or with both; or

(ii)

assaults or uses criminal force to or criminally intimidates a student shall be punished with imprisonment for a term which may extend to one year or with fine which may extend to two thousand rupees or with both; or

(iii)

wrongfully restrains or wrongfully confines or causes hurt to a student shall be punished with imprisonment for a term which may extend to two years or with fine which may extend to five thousand rupees or with both; or

(iv)

causes grievous hurt to or kidnaps or abducts or rapes or commits unnatural offence with a student shall be punished with imprisonment for a term which may extend to five years and with fine which may extend to ten thousand rupees; or
(v)

causes death or abets suicide shall be punished with imprisonment for life or with imprisonment for a term which may extend to ten years and with a fine which may extend to fifty thousand rupees.

5.

Dismissal of student.

(1)

A student convicted, of an offence under section 4 and punished with imprisonment for a term shall be dismissed from the educational institution.

(2)

A student convicted of an offence under section 4 and punished with imprisonment for a term of more than six months shall not be admitted in any other educational institution.

6.

Suspension of student.

(1)

Without prejudice to the foregoing provisions, whenever any student complains of ragging to the head or manager of an educational institution, such head or manager shall inquire into or cause an inquiry to be made into the same forthwith and if the complaint is prima facie found true, shall suspend the student or students complained against for such period as may be deemed necessary.

(2)

The decision of the head or manager of the educational institution under sub-section (1) shall be final.

7.

Abetment.

(1)

If the head or the manager of an educational institution fails or neglects to take action in the manner specified in sub-section (1) of section 6, such person shall be deemed to have abetted the offence and shall be punished with the punishment provided for the offence.

(2)

If a student commits suicide due to or in consequence of ragging, the person who commits such ragging shall be deemed to have abetted such suicide.

8.

Other laws not affected.

- The provisions of this Act shall be in addition to and not derogatory of any law for the time being in force.

9.

Power to make rules.

(1)

The Government may by notification, make rules for carrying out all or any of the purposes of this Act.

(2)

Every rule made under this Act shall immediately after it is made, be laid before the Legislature of the State, if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration of the session in which it is so laid or the session immediately following, the Legislature agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified, have effect only in such modified form or shall stand annulled as the case may be so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

10.

Repeal of Ordinance 12 of 1997.

- The Andhra Pradesh Prohibition of Ragging Ordinance, 1997 is hereby repealed.

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